

Calendar Line # 4
Case Name Katie Nguyen vs BMW of North America, LLC et al
Case No. 25CV464940
Motion to Compel Deposition and Sanctions
<u>I. BACKGROUND</u> This case stems from a breach of warranty claim under the Song Beverly Act, regarding Plaintiff Katie Nguyen (“Nguyen”)’s April 21, 2023 purchase of 2023 BMW 330e vehicle, vehicle identification number: 3MW39FF08P8D29779 (“Subject Vehicle”) that was manufactured and or distributed by Defendant BMW. (Complaint). On May 1, 2025, Plaintiff filed a Complaint alleging six causes of actions: (1) violation of Civil Code section 1793.2(D); (2) violation of Civil Code section 1793.2(B); (3) violation of Civil Code section 1793.2(A)(3); (4) breach of the implied warranty of merchantability under Civil Code sections 1791.1, 1794, and 1795.5; (5) negligent repair; and (6) fraudulent inducement-concealment. (<i>Id.</i>). Defendant BMW filed an Answer on July 10, 2025. Before the Court is Defendant BMW’s motion to compel Plaintiff Nguyen’s deposition and request for sanctions. Defendant filed the instant motion on May 6, 2026, and the motion was accompanied by a proof of service indicating electronic mail service on Plaintiff’s counsel on that same day. On August 21, 2026, Plaintiff filed an opposition brief. Defendant filed a replay brief on August 27, 2026. The Court has carefully reviewed the following: Defendant’s notice of motion, memorandum of points and authorities (“MPA”); Declaration of Samantha K. Sheehan and attached Exhibits A-I in support of the motion to compel and sanctions (totaling 88 pages); Plaintiff’s opposition (totaling 6 pages); Declaration of Pak Ching Dominic Wong and attached Exhibits 1-5 in support of plaintiff’s opposition (totaling 38 pages); Defendant’s Reply brief (totaling 4 pages); proofs of services; and the pleadings. <u>II. LEGAL STANDARD</u> Pursuant to Code of Civil Procedure section 2025.280(a), service of a proper deposition notice obligates a party or “party-affiliated” witness (officer, director, managing agent or employee of party) to attend and testify, as well as produce any document, electronically stored information, or tangible thing for inspection and copying. Section 2025.450(a) in relevant part provides that if, after service of a deposition notice, a party deponent fails to appear, testify, or produce documents or tangible things for inspection without having served a valid objection under Code of Civil Procedure section 2025.410, the deposing party may move for an order compelling attendance, testimony, and production. (Code of Civ. Proc., § 2025.450(a)). The motion must be accompanied by a meet and confer declaration, or, when a party deponent fails to attend the deposition, the motion must also be accompanied by a declaration stating that the moving party has contacted the party deponent to inquire about the nonappearance. (Code of Civ. Proc., § 2025.450(b)(2)). A motion to compel production of documents described in a deposition notice must be accompanied by a showing of good cause. (Code of Civ. Proc., § 2025.450(b)(1).) In other words, the moving party must provide declarations containing specific facts justifying inspection of the documents described in the notice. Courts liberally construe good cause in favor of discovery where facts show the documents are necessary for trial preparation.

The motion to compel must be “made no later than 60 days after the completion of the record of the deposition.” (Code of Civ. Proc., § 2025.480(b)). This time limit also applies to motions based on a deposition subpoena for production of documents or a business records subpoena. The 60-day time limit runs from the date objections are served because the deposition record is then complete. (*Rutledge v. Hewlett-Packard Co.* (2015) 238 Cal.App.4th 1164, 1192).

III. ANALYSIS

Defendant BMW moves for an order compelling Plaintiff Nguyen to appear for a deposition and request for monetary sanctions in the amount of \$2,825.00 against Plaintiff.

Defendant demonstrates that it has been seeking Plaintiff’s deposition since November 25, 2025 and requesting available dates for deposition. (Declaration of Sheehan ¶ 2; Exhibit A). Plaintiff responded the next day and offered March 3, 2026 as the deposition date, which the defense accepted on December 5 and on December 8, 2025 issued a notice of deposition of the Plaintiff. (*Id.*, at ¶¶ 3-5; Exhibits B-C). On February 26, 2026, plaintiff filed an objection to the notice of the deposition on the grounds it was unilaterally noticed, which the defense denies. (*Id.*, at ¶ 6; Exhibit D). On March 3, 2026, neither Plaintiff nor Plaintiff’s counsel appeared for the scheduled deposition and did not respond to defense counsel’s email regarding the nonappearance. (*Id.*, at ¶¶ 7-8; Exhibits E-F). From March 13-24, 2026, defense counsel reached out to Plaintiff’s counsel to rescheduled Plaintiff’s deposition, but did not receive any responses. (*Id.*, at ¶¶ 9-10; Exhibits F-G). On April 15, 2026, defense issued an amended notice of deposition of Plaintiff for May 7, 2026. (*Id.*, at ¶ 11; Exhibit H). Three days before the deposition, on May 4, Plaintiff objected to the notice indicating untimely service. (*Id.*, at ¶ 12; Exhibit I). Defense argues that plaintiff has misused the discovery process and deprived defense from conducting essential discovery due to Plaintiff’s failure to respond and appear for deposition, which has prejudiced the defense from preparing for trial and evaluating its case. (*Id.*, ¶ 13). Defense emphasizes that it has made numerous good faith efforts to obtain a mutually agreeable deposition date and that Plaintiff counsel’ has refused to provide viable dates and failed to produce the plaintiff. (MPA, p. 4-5).

In opposition, Plaintiff’s counsel asserts that Plaintiff Nguyen is not avoiding or refusing deposition, but simply requesting reasonable notice and seeks a date that works for both sides with an interpreter for Plaintiff. (Opposition p. 2-3). Plaintiff’s counsel asserts that the March 3, 2026 date was unilaterally selected and that plaintiff and counsel were unavailable. (Declaration of Wong ¶¶ 3-4; Exhibits 1-3). Plaintiff’s counsel admits a delay in responding and seeking extensions to respond to written discovery. (*Id.*, ¶ 5). Plaintiff’s counsel explains that there were significant administrative changes to the law firm that contributed to this delay. (*Id.*, ¶¶ 8-10).

In its reply brief, defense emphasizes that it has worked diligently for over nine months to secure Plaintiff’s deposition and that Plaintiff’s counsel has cancelled mutually agreed upon dates and failed to meet and confer in good faith, which has resulted in delay and prejudice. (Reply, p. 2).

The Court does not find Plaintiff’s reasoning persuasive. For over nine months Defendant has demonstrated its efforts to meet and confer about the deposition of the plaintiff. The Court will GRANT the motion to compel Plaintiff’s deposition.

IV. SANCTIONS

Pursuant to Code of Civil Procedure section 2023.010, subdivision (d), “[m]isuses of the discovery process” to include “[f]ailing to respond to or to submit to an authorized method of discovery.” Where a party or attorney has engaged in misuse of the discovery process, the court may impose a monetary sanction in the amount of “the

reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc., § 2023.020, subd. (a)).

Defendant's counsel seeks a total of \$2,825.00 in sanctions for pursuing this motion. (Declaration of Sheehan, ¶13). Defense counsel attests to having spent approximately one to two hours relating to issuing notices, dealing with untimely objections, and attempting to meet and confer regarding Plaintiff's deposition. (*Id.*, 14). Defense counsel attests that three hours were spent preparing and filing this motion. (*Id.*, 15). Defense counsel anticipates spending two hours to review the opposition brief and prepare a reply, and anticipates spending another two hours to prepare and appear to the hearing. (*Id.*). Defense claims spending seven hours on the motion and another four hours on dealing with issues regarding Plaintiff's deposition for a total of \$2,765.00. (*Id.*, 16). Defense counsel seeks \$60.00 for costs on filing this motion. (*Id.*).

Plaintiff opposes the imposition of sanctions on the grounds that it did misuse the discovery process or disobey a court order, and explains that the failure to move forward with Plaintiff's deposition was due to not having reasonable notice, failure to agreed upon a mutual date, and changes at plaintiff's counsels law firms that resulted in delays. In the alternative, Plaintiff seeks a significant reduction in sanctions.

The Court GRANTS sanctions, but DENIES the request amount of \$2,825.00. Plaintiff's counsel does not provide an hourly rate in moving papers or the Declaration of Sheehan, but based on the hours and amount requested, the Court calculates the request hourly rate at approximately \$251.36. This is a straightforward motion and the Court will GRANT three hours of time in preparing and filing the present motion and reply at the hourly rate of \$251.36 as well as the \$60.00 in costs for filing fees. The Court denies the request for two hours of anticipated time to appear for a hearing as that is prospective. Thus, the total amount of sanctions against Plaintiff and Plaintiff's counsel is \$814.08.

V. CONCLUSION

Based on the foregoing, the Court GRANTS the motion to compel. Plaintiff is to make herself available for deposition within sixty (60) days from this hearing.

The Court GRANTS sanctions in the amount of \$814.08 against Plaintiff and Plaintiff's counsel, which is to be paid withing thirty (30) days from this hearing.

The Court will prepare the formal Order.

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Calendar Line # 5
Case Name Zaki Jones vs Costco Wholesale Corporation et al
Case No. 25CV483469
Demurrer Before the court is defendant Costco Wholesale Corporation’s demurrer to plaintiff’s complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows. I. <u>BACKGROUND</u> On February 15, 2024, plaintiff Zaki A. Jones (“Plaintiff”) was a customer at defendant Costco Wholesale Corporation’s (“Costco”) warehouse location in Sunnyvale, a business establishment open to the public. (Complaint, page 2). Plaintiff elected to use the self-checkout area which was open and available for customer use. (<i>Id.</i>) Defendant Maria Doe (“Doe”), an employee of defendant Costco, repeatedly approached Plaintiff, directed Plaintiff to use a cashier line instead of self-checkout, and questioned Plaintiff whether items in his cart had been scanned. (<i>Id.</i>) Defendant Doe persisted in monitoring, hovering near, and repeatedly questioning Plaintiff while Plaintiff was checking out, despite Plaintiff’s clear indication that he wished to complete his transaction without further interference. (<i>Id.</i>). Other customers in the self-checkout area were not subjected to the same level of scrutiny, monitoring, questioning, or direction to leave self-checkout. (<i>Id.</i>). Plaintiff perceived defendant Doe’s conduct as racial profiling, as Plaintiff was singled out for heightened scrutiny and interference under circumstances in which other customers were not. (Complaint, pages 2 – 3). Plaintiff immediately complained to defendant Costco’s in-store management. (Complaint, page 3). The following day, a manager from defendant Costco contacted Plaintiff, acknowledged the concern, confirmed there was no policy requiring Plaintiff to use a cashier line, and stated the employee’s handling of the situation required further discussion and correction. (<i>Id.</i>). As a direct and proximate result of defendants’ conduct, Plaintiff suffered humiliation, emotional distress, anxiety, and loss of the full and equal enjoyment of defendant Costco’s services and Plaintiff no longer feels comfortable returning to the Sunnyvale location due to fear of repeated discriminatory treatment. (<i>Id.</i>). On December 31, 2025, Plaintiff¹ filed a complaint against defendants Costco and Doe asserting a single cause of action for [violation of the] Unruh Civil Rights Act – Civil Code §51. On March 30, 2026, Defendant Costco Wholesale Corporation (“Costco”) filed this demurrer. The motion is accompanied by a proof of electronic service on Plaintiff on that same day. Plaintiff filed an Opposition on August 27, 2026. Defendant filed a notice of non-opposition on August 27, 2026 seeking that the Court grant the demurrer without leave to amend.

¹ Plaintiff is self-represented. Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. “[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]” (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). “A litigant has a right to act as his own attorney [citation] ‘but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.’” (*Lombardi v. Citizens Nat’l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).